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Rohit Chauhan v. Surinder Singh And Others

Supreme Court Of India (Jul 15, 2013)

CASE NO.

Civil Appeal No. 5475 of 2013, decided on July 15, 2013

DISPOSITION

ALLOWED

JUDGES

- C.K Prasad
- V. Gopala Gowda, JJ.

ATTORNEY

- L. Nageswara Rao, Senior Advocate (Mishra Saurabh, Advocate) for the Appellant;
- Satinder S. Gulati, Ms Kamaldeep Gulati and Gaurav Sharma, Advocates, for the Respondents.

SUMMARY**Factual and Procedural Background**

Budhu owned agricultural land that he partitioned equally among himself and his three sons — Gulab Singh (Defendant 2 and father of the plaintiff), Zile Singh (father of Defendant 1), and Ram Kumar. Gulab Singh thus received 72 kanals, and Budhu later bequeathed an additional 24 kanals to Gulab Singh (18 kanals by will plus 6 kanals on Budhu's death), bringing Gulab Singh's holding to 96 kanals. Gulab Singh also acquired 8 kanals from the income of these properties.

After his marriage to Rajesh Rani (Defendant 7), two children were born: Rohit Chauhan (plaintiff, born 25-3-1982) and Varsha (Defendant 6). In 2000 Gulab Singh executed two sale deeds transferring 8 kanals to Defendants 3-5. In 2004 he executed a release deed gifting his remaining 96 kanals to his nephew Surinder Singh (Defendant 1). The transferees mutated the revenue records accordingly.

Rohit Chauhan filed a suit seeking a declaration that the sale deeds, release deed, and

consequential mutations were null, void, and not binding on him, his sister, or his mother on the ground that the land was ancestral/coparcenary *property*. The trial court agreed and decreed the suit. The lower appellate court reversed, holding the land to be Gulab Singh's self-acquired *property*; the High Court dismissed the second appeal in limine. The plaintiff obtained leave and appealed to the Supreme Court.

Legal Issues Presented

1. Whether land allotted to a father on partition of ancestral *property* retains or revives its coparcenary character upon the birth of a son born after the partition.
2. Consequently, whether alienations (sale deeds and release deed) executed by the father after the son's birth are void insofar as they purport to transfer the entire coparcenary *property* without legal necessity.

Arguments of the Parties

Appellant's Arguments (Plaintiff – Rohit Chauhan)

- The *property*, though separate in the father's hands at the moment of partition, became coparcenary on the appellant's birth in 1982, giving him an undivided interest.
- After the coparcenary revived, Gulab Singh could alienate the land only as *karta* and only for legal necessity, which was absent; hence the sale and release deeds are void.
- Relied on Supreme Court authority holding that *property* in the hands of a sole coparcener revives as coparcenary upon the birth of a son.

Respondents' Arguments (Defendants)

- On partition the *property* became Gulab Singh's self-acquired estate, permanently losing its coparcenary character, so he could dispose of it freely.
- Even had the appellant been alive at the time of partition, Section 8 of the Hindu Succession Act would have prevented him from taking a share; therefore his later birth could not confer coparcenary rights.
- Sale deeds and release deed were validly executed out of love, affection, and services rendered, and are reflected in revenue records.

Table of Precedents Cited

Precedent	Rule or Principle Cited For	Application by the Court
M. Yogendra v. Leelamma N. (2009) 15 SCC 184	<i>Property</i> allotted to a sole coparcener in partition is separate <i>property</i> in his hands but coparcenary rights revive on the birth of a son; alienations made	Relied upon to hold that Gulab Singh's land became coparcenary immediately upon the appellant's birth, restricting

	before the son's birth are valid, but later alienations are subject to coparcenary restraints.	Gulab Singh's power to alienate the whole <i>property</i> .
Bhanwar Singh v. Puran (2008) 3 SCC 87	Explains succession principles under Sections 6, 8, and 19 of the Hindu Succession Act; distinguishes coparcenary devolution from intestate succession.	Distinguished; the Court held it concerned succession after death, not the status of <i>property</i> during the lifetime of a coparcener.

Court's Reasoning and Analysis

The Supreme Court reaffirmed classical Hindu law principles governing coparcenary *property* :

- Coparcenary *property* consists of ancestral *property* in which male descendants acquire interest by birth (pre-2005 law).
- When ancestral *property* is allotted to a single coparcener in partition, it is his separate *property only until* another coparcener (e.g., a son) is born.
- Upon the birth of a son, the *property* “revives” as coparcenary; the son acquires an undivided interest that enlarges or diminishes with family births and deaths.
- Consequently, Gulab Singh could freely alienate the land only until 25-3-1982 (the appellant's birth). After that date, he could transfer coparcenary *property* only as *karta* and only for legal necessity, which was neither pleaded nor proved.
- The lower appellate court erred by treating the land as permanently self-acquired and ignoring the revival of coparcenary rights on the appellant's birth. The High Court, in turn, adopted that erroneous view without detailed analysis.
- Therefore, the sale deeds (19-5-2000) and release deed (28-5-2004) purporting to transfer the entire 104 kanals were invalid to the extent they exceeded Gulab Singh's own share; the question of exact shares can be worked out in appropriate proceedings.

Holding and Implications

APPEAL ALLOWED; judgment of the lower appellate court and High Court set aside; trial court decree restored.

Immediate Effect: The impugned sale deeds, release deed, and attendant mutations are declared illegal, null, and void against the appellant's coparcenary interest; parties may seek further relief regarding Gulab Singh's individual share in separate proceedings.

Broader Implications: The judgment reaffirms that *property* obtained on partition retains the potential to become coparcenary again upon the birth of a son, curbing the alienation powers of a sole surviving coparcener. No new precedent was created, but existing

doctrine was clarified and applied.

JUDGMENT

C.K Prasad, J.— Sole plaintiff, Rohit Chauhan is the appellant before us. His grandfather Budhu had three sons, namely, Gulab Singh, Zile Singh and one Ram Kumar. Gulab Singh, father of the plaintiff, has been arrayed as Defendant 2, whereas son of Zile Singh i.e Surinder Singh figures as Defendant 1 in the suit. In partition between Budhu and his three sons, Defendant 2 got $\frac{1}{4}$ share i.e 72 kanals of land. In the said partition Budhu also got 72 kanals of land and he bequeathed $\frac{1}{4}$ of his share i.e 18 kanals to each of his three sons and kept with himself 18 kanals. After the death of Budhu, Defendant 2 inherited $\frac{1}{3}$ share i.e 6 kanals and in this way plaintiff's father Gulab Singh, Defendant 2 got 96 kanals of land. Defendant 2 during his lifetime also acquired 8 kanals of land from the income of the properties which he got in partition amongst his father and brothers. At the time of partition Defendant 2 was unmarried. But later on, Gulab Singh was married to Defendant 7, Rajesh Rani and from the wedlock the plaintiff as also Defendant 6 were born. The plaintiff was born on 25-3-1982.

2. The plaintiff alleged that his father Defendant 2 executed two separate sale deeds on 19-5-2000 selling 8 kanals of land acquired from joint family funds to Defendants 3 to 5. It is the further allegation of the plaintiff that his father illegally gifted 96 kanals of land in favour of Defendant 1 Surinder Singh, the son of his real brother Zile Singh by way of release deed dated 28-5-2004. On the basis of the release deed and the sale deeds, the defendants claiming interest therein got their names mutated and attested in the revenue records. It is the case of the plaintiff that the *property* received by his father is ancestral *property* and, therefore, alienation of the same by him is null and void. On the basis of the aforesaid pleadings, the plaintiff prayed for declaration that the release deed, sale deeds and the mutation entries made on that basis are illegal, null and void and not binding on him, Varsha (Defendant 6) and Rajesh Rani (Defendant 7).

3. Defendant 1 contested the suit and, according to him, the plaintiff, his mother Rajesh Rani and minor sister Varsha were living separately from Defendant 2 and there was no good relation between them. They were not even on talking terms. According to Defendant 1, he and his family members were rendering service and giving honour to Defendant 2 and he was residing with them as their family member. Defendant 1 further averred that out of love, affection and service rendered by him, Defendant 2 was pleased and, as such, he executed a release deed in his favour and on that basis mutation entries were made.

4. It is the plea of Defendant 1 that the land in question became the self-acquired *property* of Defendant 2 after partition and, therefore, he was competent to transfer the *property* in the manner he desired. Defendant 1 further alleged that the sale deed executed by Defendant 2 in favour of Defendants 3 to 5 is legal and valid. Defendant 2 supported the case of Defendant 1 and adopted the written statement filed by him. Defendants 3 to 5 filed their separate written statements and supported the plea of Defendant 1 and averred that the sale deeds and the release deed were validly executed. On the basis of the aforesaid

pleading of the parties various issues have been framed including the following issue:

“1. Whether the plaintiff is entitled to a decree for declaration to the effect that the impugned release deed dated 28-5-2004 and Mutation No. 3365 entered and attested in lieu of the impugned release deed and further two sale deeds dated 19-5-2000 bearing Nos. 272/1 and 273/1 and Mutation Nos. 3110 and 3106 entered and attested on the basis of the impugned two sale deeds and further revenue entries are wrong, illegal and not binding on the rights of the plaintiff and Defendants 6 and 7?”

5. The trial court, on analysis of the materials placed on record and the legal position, came to the conclusion that the *property* which Defendant 2 got by virtue of the partition decree amongst his father and brothers was although separate *property* qua other relations but it attained the characteristics of coparcenary *property* after the plaintiff Rohit Chauhan was born. The finding recorded by the trial court in this regard reads as follows:

“21. No doubt Gulab Singh got some of his share in the *property* described in Para 1(a) of the plaint through his father Budhu vide Mutation No. 3089 in which the father Budhu suffered a decree in favour of Defendant 1 along with Zile Singh and Ram Kumar of $\frac{3}{4}$ th share but in the year 1969 when the said decree was passed Gulab Singh was unmarried and he had got alienated the land which had come to his share when Rohit Chauhan, plaintiff came into existence i.e on 25-3-1982. Meaning thereby that the *property* which Gulab Singh had got by the decree was although his separate *property* qua other relation but became joint Hindu family *property* immediately when Rohit Chauhan was born thereby getting characteristic of coparcenary *property* .”

Accordingly, the trial court decreed the suit.

6. Defendant 1, aggrieved by the same, preferred appeal and it was his plea that the *property* received by Defendant 2 on partition will become his separate *property* and requires to be treated as his self-acquired *property* and, therefore, Defendant 2 was free to deal with the *property* in the manner he liked. In other words, according to Defendant 1, after partition the *property* falling in the share of Defendant 2 lost its character as a coparcenary *property* and assumed the status of self-acquired *property* . The aforesaid plea found favour with the lower appellate court and it held that the *property* which Defendant 2 got on partition “lost the character of coparcenary *property* and became the self-acquired *property* of Gulab Singh”. The lower appellate court further held that once the *property* is held to be self-acquired *property* of Gulab Singh, he had every right to deal with the same in any manner he liked.

7. The relevant portion of the judgment of the lower appellate court reads as follows:

“13. In the light of abovesaid precedents it can be readily concluded that only when the *property* which is received by a person from his ancestors by survivorship can be held to be ancestral/coparcenary *property* and any other *property* which although might have

been received from the ancestors by means of will or consent decree or a father partitioned the *property*, will lose its character as that of coparcenary *property* and will become self-acquired *property* in the hands of the person receiving it. Applying these precedents to the facts of the present case, this Court will conclude that approximately 96 kanals of land was received by Gulab Singh from his father Budhu on the basis of consent decree or on the basis of will and not by survivorship and this *property* lost the character of coparcenary *property* and was self-acquired *property* of Gulab Singh. The version of the plaintiff-Respondent 1 in the present case is that rest of the *property* was acquired by Gulab Singh with the funds originated from joint Hindu family *property* and the said *property* also assumed the character of joint Hindu family *property*, also cannot be sustained because the major chunk of land in the hands of Gulab Singh has been held to be non-ancestral *property* and rather self-acquired *property* of Gulab Singh.

14. Once the *property* involved in the suit has been held to be self-acquired *property* of Gulab Singh then Gulab Singh was having every right to deal with the same in any manner he liked and no embargo can be put on the rights of Gulab Singh as well as his rights to alienate the suit *property* are concerned and thus neither release deed nor sale deeds executed by Gulab Singh can be questioned by anyone much less by son of Gulab Singh....”

Accordingly, the lower appellate court allowed the appeal and set aside the judgment and decree of the trial court and dismissed the suit.

8. The plaintiff, aggrieved by the same, preferred second appeal and the High Court dismissed RSA No. 1992 of 2011 the second appeal in limine and, while doing so, observed as follows:

“... Finding of the lower appellate court that the suit land is not proved to be ancestral or coparcenary *property* is fully justified by the documentary evidence and admitted facts....”

This is how the plaintiff is before us. Leave granted.

9. Mr L. Nageswara Rao, learned Senior Counsel appearing on behalf of the appellant-plaintiff submits that at the time when the plaintiff's father Gulab Singh got the *property* in partition, it was his separate *property* vis-à-vis his relations but after the birth of the plaintiff on 25-3-1982, the plaintiff acquired interest in the *property* as a coparcener. Mr Satinder S. Gulati, learned counsel appearing on behalf of the respondent-defendants, however, submits that once the *property* fell into the share of the plaintiff's father Gulab Singh, it lost the character of a coparcenary *property* and the said status will not change on the birth of the plaintiff. He points out that even if plaintiff Rohit Chauhan was born at the time of partition between Defendant 2, his father and brothers, the plaintiff would not have

got any share under **Section 8 of the Hindu Succession Act**.

10. In support of the submission Mr Rao has placed reliance on a judgment of this Court in *Bhanwar Singh v. Puran* [\(2008\) 3 SCC 87](#), and our attention has been drawn to the following passage from the said judgment:

“13. Section 6 of the Act, as it stood at the relevant time, provided for devolution of interest in the coparcenary *property*. Section 8 lays down the general rules of succession that the *property* of a male dying intestate devolves according to the provisions of the Chapter as specified in Clause (1) of the Schedule. In the Schedule appended to the Act, natural sons and daughters are placed as Class I heirs but a grandson, so long as father is alive, has not been included. Section 19 of the Act provides that in the event of succession by two or more heirs, they will take the *property* per capita and not per stripes, as also tenants-in-common and not as joint tenants.”

11. We have bestowed our consideration to the rival submissions and we find substance in the submission of Mr Rao. In our opinion coparcenary *property* means the *property* which consists of ancestral *property* and a coparcener would mean a person who shares equally with others in inheritance in the estate of common ancestor. Coparcenary is a narrower body than the joint Hindu family and before the commencement of the Hindu Succession (Amendment) Act, 2005, only male members of the family used to acquire by birth an interest in the coparcenary *property*. A coparcener has no definite share in the coparcenary *property* but he has an undivided interest in it and one has to bear in mind that it enlarges by deaths and diminishes by births in the family. It is not static. We are further of the opinion that so long, on partition an ancestral *property* remains in the hand of a single person, it has to be treated as a separate *property* and such a person shall be entitled to dispose of the coparcenary *property* treating it to be his separate *property* but if a son is subsequently born, the alienation made before the birth cannot be questioned. But, the moment a son is born, the *property* becomes a coparcenary *property* and the son would acquire interest in that and become a coparcener.

12. The view which we have taken finds support from a judgment of this Court in *M. Yogendra v. Leelamma N.* [\(2009\) 15 SCC 184](#) in which it has been held as follows:

“29. It is now well settled in view of several decisions of this Court that the *property* in the hands of a sole coparcener allotted to him in partition shall be his separate *property* for the same shall revive only when a son is born to him. It is one thing to say that the *property* remains a coparcenary *property* but it is another thing to say that it revives. The distinction between the two is absolutely clear and unambiguous. In the case of former any sale or alienation which has been done by the sole survivor coparcener shall be valid whereas in the case of a coparcener any alienation made by the karta would be valid.”

13. Now referring to the decision of this Court in *Bhanwar Singh* [\(2008\) 3 SCC 87](#) relied on by the respondents, the same is clearly distinguishable. In the said case the issue was in

relation to succession whereas in the present case we are concerned with the status of the plaintiff vis-à-vis his father who got *property* on partition of the ancestral *property* .

14. A person, who for the time being is the sole surviving coparcener as in the present case Gulab Singh was, before the birth of the plaintiff, was entitled to dispose of the coparcenary *property* as if it were his separate *property* . Gulab Singh, till the birth of plaintiff Rohit Chauhan, was competent to sell, mortgage and deal with the *property* as his *property* in the manner he liked. Had he done so before the birth of plaintiff, Rohit Chauhan, he was not competent to object to the alienation made by his father before he was born or begotten. But, in the present case, it is an admitted position that the *property* which Defendant 2 got on partition was an ancestral *property* and till the birth of the plaintiff he was the sole surviving coparcener but the moment plaintiff was born, he got a share in the father's *property* and became a coparcener. As observed earlier, in view of the settled legal position, the *property* in the hands of Defendant 2 allotted to him in partition was a separate *property* till the birth of the plaintiff and, therefore, after his birth Defendant 2 could have alienated the *property* only as karta for legal necessity. It is nobody's case that Defendant 2 executed the sale deeds and release deed as karta for any legal necessity. Hence, the sale deeds and the release deed executed by Gulab Singh to the extent of entire coparcenary *property* are illegal, null and void. However, in respect of the *property* which would have fallen in the share of Gulab Singh at the time of execution of sale deeds and release deed, the parties can work out their remedies in appropriate proceeding.

15. In view of what we have observed above, the view taken by the lower appellate court as affirmed by the High Court is erroneous in law.

16. In the result, we allow this appeal, set aside the judgment and decree of the lower appellate court as affirmed RSA No. 1992 of 2011 by the High Court and restore that of the trial court with the liberty aforementioned. In the facts and circumstances of the case, there shall be no order as to costs.